

STATES

IDAHO -- Kempthorne nominates Hansen to PUC

NEW MEXICO -- PRC allows Qwest SGAT to go into effect

IDAHO -- Gov. Kempthorne proposes tax credits for broadband installations

NEBRASKA -- Bill would create E911 surcharge

ILLINOIS -- Legislators take aim at telephone solicitations

COLORADO -- Legislation would create no-call list

NEW HAMPSHIRE -- Bill would bar solicitors' use of autodialers

MISSISSIPPI -- Legislator moves to bar phone solicitors from blocking Caller ID

MAINE -- Bills target drivers' use of wireless phones

UTAH -- PSC sets conference on Qwest facilities prices

STATE & LOCAL GOVERNMENT

IDAHO

Gov. Kempthorne nominates Hansen to PUC

Gov. Dirk Kempthorne (R.) has nominated Public Utilities Commission President Dennis S. Hansen (R.) to serve a second six-year term as commissioner. Although the nomination is subject to Senate confirmation, Kempthorne's staff told TR the governor doesn't expect to encounter any problems with the confirmation.

The staff said no date had been set for a Senate hearing. The Senate has until the end of its session, which is expect to adjourn in March.

Hansen first was appointed to the commission in February 1995 by former Gov. Phil Batt (R.), to a term that expired in 2001. Before joining the commission, Hansen served five terms in the Idaho Senate from 1987 to 1995.

In April the commissioners will elect a new commission president, the PSC staff told TR.

SECTION 251/252

NEW MEXICO

PRC allows Qwest SGAT to take effect

The Public Regulation Commission yesterday allowed Qwest Corp.'s proposed statement of generally available terms and conditions to take effect, subject to review by the commission. Pursuant to section 253(f)(3) of the federal Telecommunications Act of 1996, the commission had to approve or reject the filing within 60 days. Qwest filed the SGAT Nov. 22.

The PRC staff told TR the commission will review the SGAT when the regional workshops on Qwest's bid to enter the interLATA (local access and transport area) market under section 271 of the Act have concluded. (Utility case no. 3537 - In the Matter of Qwest Corporation's Statement of Generally Available Terms Pursuant to Section 252(f) of the Telecommunications Act of 1996)

ADVANCED SERVICES

IDAHO

Gov. Kempthorne proposes tax credits for broadband installations

Gov. Dirk Kempthorne (R.) has proposed offering companies tax credits for bringing broadband connectivity to Idaho. Under his plan, investments in broadband infrastructure would qualify for a 3% investment tax credit in addition to the current 3% investment tax credit offered for any investment in the state.

Kempthorne proposed additional tax credits for investments in counties where the unemployment rate is higher or where the personal income level is lower than the statewide averages. For example, if a company invested in fiber in rural Adams County in western Idaho, it could receive a 10.19% tax credit. Companies investing in fiber optic facilities in urban Boise, by comparison, could receive a 6.34% tax credit.

The plan seeks to recognize the importance of Internet access and high-speed connectivity. The tax incentives also aim to reduce the disparity in Internet access services available to residents of urban and rural areas.

The total cost of the package is estimated to be \$10.8 million. Kempthorne also proposed a \$3.4 million permanent tax cut in the corporate tax rate, reducing the rate from 8% to 7.8%. The governor proposed implementing a research-and-development tax credit of 5%. Kempthorne said he's proposing tax relief and tax incentives to businesses that would total more than \$22 million.

WIRELESS

NEBRASKA

Bill would create E911 surcharge

Sen. Pat Engel (I., District 17) has introduced a measure that would establish a 50-cents per month surcharge on wireless service bills to fund wireless E911 emergency response service. Wireless carriers would have to remit the surcharges to the Department of Administrative Services' division of communications within 60 days of the last day of each quarter.

LB 585 would create an advisory board to advise the division regarding the implementation, development, and maintenance of E911. The governor would appoint the board's members, who would include county and municipal officials and representatives from the wireless industry.

The division would determine (1) the costs of implementing wireless automatic location identification, (2) the level of funding needed to trigger disbursement, and (3) the costs to be incurred by wireless carriers, "public safety answering points," and the advisory board for implementing E911.

LB 585 has been referred to the Transportation and Telecommunications Committee.

CUSTOMER-AFFECTING
ILLINOIS

Legislators take aim at telephone solicitations

The House Rules Committee is considering a bill that would create a Do-Not-Call database of listings of phone customers who don't want to receive unsolicited telemarketing calls. Beginning July 1, 2002, persons and entities would be prohibited from making any telephone solicitations to residential consumers who notified the secretary of state that they didn't want to receive such phone calls. The attorney general would establish a toll-free number to take complaints about unsolicited telemarketing calls.

The attorney general and the secretary of state would have to establish an advisory group representing government entities, local exchange carriers, business, and senior citizens and other community advocates to promote educational literature to inform consumers about telephone solicitations.

HB 176 would allow the attorney general to initiate proceedings that could result in a civil penalty of up to \$5,000 for each violation. Any person who received more than one telephone solicitation within any 12-month period by or on behalf of the same entity could bring an action to enjoin the violation, or bring an action to recover actual monetary loss, or receive up to \$5,000 in damages.

Reps. Jay Hoffman (D., Collinsville), Dan Reitz (D., Steeleville), James Fowler (D., Harrisburg), Thomas Johnson (R., West Chicago), and Thomas Holbrook (D., Belleville) introduced HB 176.

Rep. William Black (R., Danville) also has introduced a bill that would create a no-call database. HB 143 would require the state Commerce Commission to establish the database and would allow the commission to penalize violators. (1/12/01 a.m.)

CUSTOMER-AFFECTING
COLORADO

Legislation would create no-call list

Sen. Ken Chlouber (R., District 4) and Rep. Mark Larson (R., District 59) have introduced a bill that would create a no-call list for residential telephone subscribers who don't want to receive telephone solicitation calls. The Office of Consumer Counsel (OCC) would administer the list.

The OCC would have to establish rules for developing and maintaining the list. The rules would have to require that local exchange carriers notify subscribers annually through bill mailing inserts of the no-call list. The rules also would have to require the designated agent to maintain an automated online complaint reporting system to enable subscribers to report suspected violations. The OCC would have to contact persons or entities reported to have violated the legislation.

A consumer could subscribe to the list for free, but telemarketers would have to pay \$500 to access the list. Violators of the legislation would be committing a "deceptive trade practice" under the Colorado Consumer Protection Act.

SB 93 has been assigned to the Senate Business, Labor, and Finance Committee.

CUSTOMER-AFFECTING NEW HAMPSHIRE

Bill would bar solicitors' use of autodialers

Rep. Harold P. Melcher (D., District 11) has introduced a bill that would prohibit telephone solicitors from using automatic telephone dialing systems when calling residential telephone customers. HB 115 would provide a \$500 private right of action. The bill has been referred to the Commerce Committee. Its text is available at <http://gencourt.state.nh.us/legislation/2001/HB0115.html>.

CUSTOMER-AFFECTING MISSISSIPPI

Legislator moves to bar phone solicitors from blocking Caller ID

Rep. Joey Fillingane (R., District 101) has introduced a bill that would prohibit telephone solicitors from blocking or otherwise bypassing a consumer's Caller ID service. Caller ID service providers wouldn't be held liable for any violations of HB 208 by other parties.

HB 208 has been referred to the House Public Utilities Committee.

WIRELESS MAINE

Bills target drivers' use of wireless phones

Competing bills that would ban wireless phone use while driving have been introduced in the House. Rep. Gerald N. Bouffard (D., District 90) has introduced HB 98 to prohibit the use of handheld phones while driving.

Meanwhile, Rep. Joseph E. Brooks (D., District 107) is sponsoring HB 91, which would prohibit drivers from using handheld phones or any other "handheld electronic device," including computers, citizens band radios, dictaphones, and microphones."

Both bills would make violations traffic offenses. They have been referred to the Committee on Transportation. The text of HB 98 is available at

<http://janus.state.me.us/legis/bills/billtexts/LD010201-1.asp>, and the text of HB 91 is available at <http://janus.state.me.us/legis/bills/billtexts/LD009501-1.asp>.

PRICING UTAH

PSC sets conference on Qwest facilities prices

The Public Service Commission has scheduled a Jan. 31 scheduling and technical conference to begin setting prices for facilities and services that Qwest Corp. provides to other local exchange carriers (LECs). The commission has asked interested parties to identify facilities and services that the company provides to other LECs for which prices need to be set.

Qwest initiated this proceeding, submitting a proposed list of facilities and services that require prices. Its list includes customer transfer charges, unbundled loops, line sharing, unbundled dark fiber, local switching, and unbundled network element platforms. (Docket no. 00-049-105, In the Matter of the Application of Qwest Corp. for Commission Determination of Prices for Wholesale Facilities and Services)

Federal law prohibits duplication in any form, including electronic, without permission of the publisher.

TR State NewsWire Copyright 1998, 1999, 2000 Telecommunications Reports International, Inc. (ISSN 1082-9350) is transmitted each business day at 8 a.m. and 2 p.m., except holidays.
Telecommunications Reports International, Inc.
1333 H St. NW, Suite 100-E
Washington, DC 20005-4707

Editor: George E. Brandon, E-mail: gbrandon@tr.com
Associate Editor for Online Publications: Jennifer Erschen, E-mail: jerschen@tr.com
Senior Legislative & Regulatory Analyst: Gayle Kansagor, E-mail: gkansagor@tr.com
Senior Analyst for Federal Law & Policy: John Evanoff, E-mail: jevanoff@tr.com
Senior Research Analyst: Steve Arlowe, E-mail: sarlowe@tr.com
Senior Analyst: Barney McManigal, E-mail: bmcmmanigal@tr.com
Account Services: Eileen Callahan (202) 312-6116, (202) 842-3023 (fax)
E-mail: ecallahan@tr.com